

SENATE BILL 2597

By Southerland

AN ACT to amend Tennessee Code Annotated, Title 70,
relative to wildlife resources.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 70-1-305, is amended by adding the following new subdivision (13):

(A) Notwithstanding §§ 70-1-301(a) and 70-6-101(a), enter into agreements with local law enforcement agencies for the limited purpose of assisting the agency with the enforcement of this title, rules promulgated by the fish and wildlife commission, and proclamations passed by the fish and wildlife commission;

(B) Such agreements must be limited in scope to assisting with matters of public safety specific to human wildlife interaction such as feeding of wildlife and interaction with wildlife that could cause a public safety concern. The agreements must specify the laws, rules, or proclamations the local law enforcement agency is authorized to enforce and cite; and

(C) The agreements created and entered into pursuant to this subdivision (13) must require local law enforcement agencies to provide regular reports to the executive director, or the director's designee, when the authority under the agreement is exercised. Such reporting must include, but not be limited to, all details related to the citation, including the facts of the offense, and the final disposition.

SECTION 2. Tennessee Code Annotated, Title 70, Chapter 4, Part 2, is amended by adding the following new section:

(a) Notwithstanding another law to the contrary, it is an offense to feed black bears within the confines of an area for which the commission has proclaimed that feeding black bears is prohibited.

(b) Knowingly feeding a black bear in violation of subsection (a) is a Class B misdemeanor, punishable by a fine of no less than two hundred fifty dollars (\$250), before the imposition of any additional court costs or fees.

(c) Unknowingly feeding a black bear in violation of subsection (a), that occurs as a result of knowingly leaving food or garbage unsecured and otherwise accessible to black bears, is a Class B misdemeanor, punishable by:

(1) For a first offense, a written warning only; or

(2) For a second or subsequent offense, a fine of no less than two hundred fifty dollars (\$250), before the imposition of any additional court costs or fees.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it, and applies to acts or omissions occurring on or after such date.